

Authority for Personal Data
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The Minister of Infrastructure and Water Management
P.O. Box 20901
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Date
September 12, 2023
Our reference
z2023-02944
Your letter dated
July 20, 2023
Contact person
Your reference
IENW/BSK-2023/196905
Subject
Advice on the draft Bviw 2009

Dear Mr. Harbers,

In your letter dated July 20, 2023, the Authority for Personal Data (AP) was consulted pursuant to the provisions of Article 36, fourth paragraph, of the General Data Protection Regulation (GDPR) regarding the draft amendment of the Decree on Pollution Value of Wastewater 2009 (hereinafter: the draft).

Assessment of the personal data aspects of the draft gives the AP reason to make a remark.

Scope of the draft

The draft regulates - for the purpose of a correct purification and pollution levy¹ by the water authorities and the Minister of Infrastructure and Water Management - how the pollution value of wastewater is determined. In this context, the water authorities and the Minister of Infrastructure and Water Management (the data controllers) process personal data of the liable parties² already known to them. This includes address details, name of the contact person, and email address.

Advice

In the explanation accompanying the draft, Article 6, first paragraph, introductory phrase, part c, GDPR (legal obligation) is mentioned as the processing basis because the processing of the aforementioned contact details is necessary to comply with a legal obligation imposed on the water authority or the Minister of Infrastructure and Water Management.³ The AP understands the reasoning behind this choice as follows: since the water authorities and the Minister of Infrastructure and Water Management have the legal duty (obligation) to establish and collect purification and pollution levies, they have a legal obligation to process contact details; otherwise, they cannot make contact with the liable parties and cannot inform them.

The AP does not view the processing of contact details as a legal obligation. The text of the law in the draft does not require the processing of these data, and although the processing of contact details is necessary to determine and collect the owed levies from the (correct) liable parties, this necessity lies in (serves) the ability to perform a task of general interest, namely the ability to establish and collect the purification and pollution levy. The processing basis is therefore Article 6, first paragraph, introductory phrase, part e, GDPR.

The AP advises that the explanation should include Article 6, first paragraph, introductory phrase, part e, GDPR as the processing basis.

Workload AP

The AP notes that the draft is not expected to require additional effort from the AP.

Disclosure

This advice will be published on the AP's website within two weeks.

Sincerely,

Authority for Personal Data,

Aleid Wolfsen

Chairman

3 See paragraph 3 (p. 11) of the explanation accompanying the draft.